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DEPARTMENT OF LEGISLATIVE SERVICES
OFFICE OF POLICY ANALYSIS
MARYLAND GENERAL ASSEMBLY

August 11, 2026

Jared DeMarinis, Esq.
State Administrator of Elections
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151 West Street, Suite 200
Annapolis, Maryland 21401-0486

Dear Mr. DeMarinis:

In accordance with § 7-105(b) of the Election Law Article, enclosed are the summaries prepared by the Department of Legislative Services of the following questions that will appear on the ballot at the 2026 general election as a result of legislation passed by the General Assembly at the Special Session of 2026:

Question 1 – Constitutional Amendment
Chapter 155 (House Bill 604) of 2026
Arbitration Reform for State Employees Act of 2026

Question 2 – Constitutional Amendment
Chapter 878 (Senate Bill 933) of 2026
Judiciary Department – Commission on Judicial Disabilities – Temporary Appointment

Question 3 – Constitutional Amendment
Chapter 881 (House Bill 2100) of the Special Session of 2026
Election Districts – General Assembly and Representatives in Congress

As you are aware, during the Special Session, the General Assembly: (1) withdrew and recalled the constitutional amendment proposed by Chapter 156 (Senate Bill 28) of 2026 through the passage of Chapter 882 of the Acts of the Special Session of the General Assembly of 2026; and (2) proposed an additional constitutional amendment through the passage of Chapter 881 of the Acts of the Special Session of the General Assembly of 2026.

QUESTION 2: CONSTITUTIONAL AMENDMENT

Judiciary Department – Commission on Judicial Disabilities – Temporary Appointment

Chapter 878 of 2026 (Senate Bill 933)

Summary

The Commission on Judicial Disabilities is responsible for investigating complaints against State court justices and judges and recommending disciplinary action to the Supreme Court of Maryland, as appropriate. There are no provisions in current law governing the membership of the commission when there is a vacancy at the end of an expired term, a recusal, or a disqualification.

This constitutional amendment would authorize the commission chair, in the event of a vacancy at the end of an expired term, a recusal, or a disqualification, to recall a former member to serve as a temporary substitute member of the Commission or request that the Governor appoint a temporary substitute member or extend a current member's term. If the commission chair requests that the Governor take action, the Governor would be authorized to appoint a temporary substitute member for a specified period or extend a current member's term until a replacement member is appointed.

Under the constitutional amendment, a temporary substitute member: (1) is subject to the same qualifications that applied to the member who is being temporarily replaced; (2) may not have been previously rejected by the Senate for appointment to the commission; and (3) if the member is a judge or an attorney, must be in good standing with the Maryland bar.